

STATEMENT OF WORK

Title: General Construction Indefinite Delivery/Indefinite Quantity (IDIQ)

I. BACKGROUND:

The National Institute of Standards and Technology (NIST) Gaithersburg, Maryland campus is a Research and Development (R&D) facility with 52 buildings located on a 578-acre campus.

Most R&D buildings are technically sophisticated laboratory facilities with specialized environmental and utility systems required for research and experimental activities. Laboratory facilities typically utilize specialized controls such as uninterrupted power, compressed gas systems, clean-room technologies, and tight-tolerance air temperature control systems for the conduct of research and experimental studies.

Utilities are distributed to the individual buildings by underground pipe and electrical distribution systems from central plant services owned and operated by NIST.

Existing buildings range in age with the oldest buildings over 60 years old. The construction on campus is generally steel superstructure with block and brick wall construction. Several facilities have specialized layouts with below grade concrete sub-basements and/or combination window/panelized storefront façade. Facility interior and exterior rehabilitation and renovations are continuous as buildings and systems age, or scientific projects require new layouts to accommodate on-going research.

II. PURPOSE:

Multiple Indefinite Delivery/Indefinite Quantity (IDIQ) General Construction Contracts will be awarded to a maximum of five (5) offerors. The IDIQ contract will have a total aggregate value up to \$9,800,000.00 for the four (4) year ordering period. However, the Government reserves the right to award less or more.

The IDIQ contract will be used to execute multiple individual task orders ranging in value from \$2,500 up to \$3,500,000 of facilities renovation, remodel, modernization, or improvement projects. Task orders will be offered to be competitively bid by the General Construction IDIQ contract holders as per FAR 16.505.

Minimum Contract Value: \$2,500.00

Maximum Contract value: \$9,800,000.00

III. PLACE OF PERFORMANCE:

NIST Gaithersburg Campus
100 Bureau Dr, Gaithersburg, MD 20899

Regular Business Hours

Regular business hours are Monday through Friday, 6:00 AM – 7:00 PM Eastern Standard Time, excluding Federal holidays and NIST closures.

IV. PERIOD OF PERFORMANCE:

Four (4) years. Effective Ordering Periods as follows:

Base Ordering Period - 12 Months
Ordering Period 0001 - 12 Months
Ordering Period 0002 - 12 Months
Ordering Period 0003 - 12 Months

Each task order will specify its period of performance.

V. GENERAL REQUIREMENTS:

On-Ramp/Off-Ramp Procedures

- The contractor acknowledges that NIST may **add (on-ramp) or remove (off-ramp) contractors** from this IDIQ or task order at the agency's discretion.
- On-ramping allows additional qualified contractors to participate in future task orders if they meet eligibility and performance requirements.
- Off-ramping may occur due to performance issues, changes in agency requirements, or at the discretion of NIST, without penalty.
- Contractors added through on-ramping shall comply with all terms, conditions, and requirements of the base contract.

Task Order Assignment

- Task orders will be issued based on agency needs and may be competed among all eligible on-ramp contractors or awarded directly at the agency's discretion.
- Contractors removed from the contract (off-ramped) will not be assigned additional task orders after official notification.

Performance Requirements

All contractors, whether on-ramped or off-ramped, shall meet the same quality, safety, and compliance standards outlined in the base contract and task order.

Government Furnished Property

NIST will furnish applicable hazardous material information to the contractor on each task order. Any other Government furnished property, material, equipment, or information will be detailed in each task order.

Inspection & Acceptance

In addition to the inspection and acceptance terms articulated in the specific FAR clause that allows the Government reserves the right to perform such performance tests and evaluations as defined below to verify specified system performance. Such tests and evaluations, if performed, shall be conducted within the environment that the system is to be operated. The Contractor has the right to be present during the tests and evaluations, if performed, at the Contractor's expense.

A visual inspection of the equipment will be performed by the NIST POC to identify surface defects or any form of indication that any equipment was damaged during transport to NIST. The Government shall have sole discretion to require repair or replacement of damaged and/or nonconforming supplies at no cost to the Government. The Government at any time prior to acceptance shall reject the equipment due to defects and/or nonconformance. The vendor is responsible for latent defects discovered any time after final inspection. However, the extent of its liability shall be prorated over the useful life of the equipment.

Ownership of the equipment shall transfer to NIST upon acceptance by the Government.

The Government will test, inspect, and accept or reject the equipment within 15 working days of the receipt of the equipment unless otherwise indicated above. The Government reserves the right to conduct quality assurance testing to confirm that a given instrument(s) meets the manufacturer's and/or the Government's performance specifications. It is anticipated that the equipment will meet all manufacturer's specifications and/or the Government's performance specifications identified in the most recent operations and maintenance manual for each piece of equipment and/or in this document.

REQUIREMENTS FOR CONTRACTOR & CONTRACTOR PERSONNEL

Safety: NIST is committed to maintaining a work environment that safeguards the public and the environment, as well as personnel and property. If the award requires construction, demolition, excavation, renovation, or other work for which the contractor directs and oversees contractor personnel (including subcontractors) at NIST-owned and operated sites. The Contractor employee must be responsible for knowing and complying with all installation safety prevention regulations. Such regulations include, but are not limited to, general safety, fire prevention, and waste disposal.

General construction services for NIST will be detailed within the individual task orders. This is NOT a design-build contract, all requirements will be designed by others.

The Contractor must furnish the necessary personnel, material, equipment, services, and facilities (except as otherwise specified), to perform the requirements within the Statement of Work (SOW).

The document titled "Guidelines for OFRPM Contractors and A/E Firms Performing Site Investigations, Fieldwork and Construction at the National Institute of Standards and Technology" is an attachment to this Statement of Work. All requirements outlined in this document will apply to all task orders awarded under this IDIQ.

NIST Suborders and Outages is provided as an attachment to this SOW. Contractors must review all attachments and comply with identified requirements in the following documents:

- NIST N 7101.64 Electrical Safety
- NIST P 7400.00 Fire and Life Safety
- NIST S 7101.56 Control of Hazardous Energy (LOTO)
- NIST S 7401.01 Fire Protection & Life Safety for Design and Construction
- NIST S 7401.02 Inspection, Testing and Maintenance of Fire Protection and Life Safety Systems
- NIST S 7401.03 Impairment of Fire Protection and Life Safety Systems
- NIST S 7401.04 Fire Prevention During Welding, Cutting and Other Hot Work
- NIST PR 2103.06 Utility Outages

NIST Suborder 7401.00, Fire and Life Safety, details the duties and powers of the NIST Authority Having Jurisdiction (AHJ) with respect to fire protection and life safety requirements for new construction and additions or alterations to existing buildings.

Security: NIST is a restricted campus. An identification badge is required for access to entry into buildings and is shown to the armed Security Police when entering the campus.

Identification Badges: Contractor employees must comply with NIST identification and access requirements. Each Contractor employee must wear a visible identification badge provided by the NIST Security Office.

VI. SPECIFIC TASKS:

The task orders under this contract may include but are not limited to the following activities:

1. Fire alarm installation and modification
2. Fire suppression system installation and modification
3. Electrical equipment and distribution installation and modification
4. HVAC equipment and ductwork installation and modification
5. HVAC piping and insulation (steam or chilled water) installation and modification

6. Plumbing systems (potable water, industrial water, laboratory waste, sanitary sewer, storm drainage, etc.) installation and modification
7. Laboratory process gas distribution and storage installation and modification
8. Construct laboratory cabinets, countertops, connection of laboratory equipment, fume hoods, and laboratory exhaust
9. Exterior envelope modifications including masonry, glazing, and foundations
10. Door modifications: interior, exterior (including entry and exit card readers), and coiling doors
11. Interior changes: metal or gypsum board, flooring installation, ceiling modifications
12. Site paving, concrete work, site utilities construction

The Contractor must provide the following:

Task 1 - Safety on the NIST Campus

Provide a detailed, site-specific Safety Plan to the contracting officer within 7 days after award that describes how the contractor will maintain a safe work environment and comply with applicable Occupational Safety and Health Administration (OSHA) standards, as well as with applicable state and local laws, standards, and codes.

The Safety Plan shall specify how the company's policies and practices will comply with each of the applicable standards, laws, and codes.

The contracting officer will provide written comments regarding the plan to the contractor within seven (7) days of receipt and will require the contractor to submit a revised safety plan within seven (7) days after that to the contracting officer for their review. This cycle may be repeated, if necessary, until the contracting officer determines the safety plan to be acceptable.

Reference:

See NIST's Contractor Safety Program for required elements of Contractor Safety Plans.

Task 2 - Safety-Related Equipment

Provide all safety-related equipment required to perform the work under this award, including personal protective equipment (PPE) and other equipment that is required or appropriate to protect contractor personnel and other personnel on the NIST campus. Contractor-provided personal protective equipment shall include, at a minimum, hard hats, safety shoes, safety glasses (prescription or standard), respiratory protection (powered air purifying respirator or full-face mask respirator), high visibility clothing and gloves that meet applicable OSHA standards for PPE.

Task 3 - Training

Provide safety-related training required by applicable OSHA, state and local regulations or standards to affected contractor personnel (including subcontractor personnel) that perform work under this award. Such training may include, for example, training for proper use of PPE, respirator use, fall protection, crane operation, forklift operation; electrical safety, or other safety-related topics.

Maintain records of safety training provided to contractor personnel (including subcontractor personnel) that perform work on this award. The contractor shall make those records available to the contracting officer, contracting officer's representative for the award, or other authorized personnel within 7 days of receipt of their written request, and annually thereafter or upon request.

Require contractor personnel (including subcontractors) to attend required NIST-specific health or safety training that is required by the award.

Task 4 - Health Hazard Assessments and Medical Evaluations

Provide required health hazard exposure assessments, medical evaluations and screenings, and exposure monitoring required by applicable OSHA requirements.

Ensure PII information is protected.

Task 5 - Homeland Security Presidential Directive (HSPD)-12

The Contractor (and/or any subcontractor) and its employees who require physical access to NIST facilities or logical access to NIST IT networks or systems must comply with Homeland Security Presidential Directive (HSPD)-12, *Policy for a Common Identification Standard for Federal Employees and Contractors*; OMB M-05-24; OMB M-19-17; FIPS 201, *Personal Identity Verification (PIV) of Federal Employees and Contractors*; NIST HSPD-12 policy; and *Executive Order 13467, Part 1 §1.2*.

Task 6 - Roster

The Contractor (and/or any subcontractor) must submit a roster by name, position, e-mail address, phone number and responsibility, of all staff working under this acquisition where the Contractor will develop, have the ability to access, or host and/or maintain a government information system(s).

The roster must be submitted to the COR and/or CO within 14 days of the effective date of this contract. Any revisions to the roster as a result of staffing changes must be submitted within 14 days of the change. The COR will notify the Contractor of the appropriate level of investigation required for each staff member. If the employee is filling a new position, the Contractor must provide a position description, and the Government will determine the appropriate suitability level.

Position Sensitivity Designations Requirement

All Contractor (and/or any subcontractor) employees must obtain a background investigation commensurate with their position sensitivity designation that complies with Parts 1400 and 731 of Title 5, Code of Federal Regulations (CFR).

VII.SCHEDULE OF DELIVERABLES:

Deliverables will be defined in the SOW of each task order.

VIII.PAYMENT SCHEDULE:

The Contractor will be paid, in accordance with the payments clause in the contract and as otherwise noted in this document, upon receipt of a proper invoice.

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